THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2023-35

A BY-LAW TO DEEM PART OF REGISTERED PLAN 42M592 IN THE TOWNSHIP OF NIPISSING NOT TO BE A PART OF A REGISTERED PLAN OF SUBDVISION FOR THE PURPOSES OF SECTION 50(4) OF THE PLANNING ACT

WHEREAS Section 50(4) of the *Planning Act*, R.S.O. 1990, Chapter P.13, (hereinafter the *Planning Act*) authorizes a municipality to designate any plan of subdivision or part thereof that has been registered for eight years or more as not being a plan of subdivision for subdivision control purposes;

AND WHEREAS Plan 45M592, in the Township of Nipissing, was originally filed and registered on May 29th, 1992 and is a registered plan of subdivision for the purposes of section 50 of the *Planning Act*;

AND WHEREAS the Plan has been registered for more than eight years;

AND WHEREAS it is deemed expedient in order to control the development of land in the municipality that a by-law be passed pursuant to Section 50(4) of the *Planning Act* affecting certain lands contained in the Plan;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWNSHIP OF NIPISSING HEREBY ENACTS AS FOLLOWS:

1. THAT Lot 8, PL 42M592 and Lot 9, PL 42M592, Township of Nipissing are hereby deemed not to be part of a registered plan of subdivision for the purposes of Subsection 50(3) of the *Planning Act*, R.S.O. 1990, Chapter P.13.

2. THAT this By-law shall take effect as the date of registration as provided for in subsections 50(27) and (28) of the Planning Act, R.S.O. 1990, Chapter P.13, as amended.

BY-LAW read a first, second and third time and passed this 11th day of July, 2023.

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Tom Piper, Mayor

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Kris Croskery-Hodgins,
Municipal Administrator-Clerk-Treasurer